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Court

SINDH HIGH COURT

Date

1999-08-30

Appeal No.

CRIMINAL APPEALS NOS. 200 TO 204 AND 206 TO 208 OF 1995

Judge

ABDUL HANIEED DOGAR AND MUHAMMAD ROSHAN ESSANI

Parties

MANSOOR ALI BABAR AND 5 OTHERS—APPELLANTS VERSUS THE STATE—
RESPONDENT

Lawyers

MUHAMMAD ASHRAFF KAZI AND AZIZULAH K. SHAIKH FOR APPELLANTS. MUHAMMAD IQBAL RAAD, A. G. FOR RESPONDENT.

Statutes

PENAL CODE (XLV OF 1860) - SS. 302/34,304/34,396/34, 109/34, 307/34 AND 394/34

Judgment

ABDUL HAMEED DOGAR, J.—By common judgment we propose to dispose of Criminal Appeals Nos.200, 204, 207 of 1995 in respect of appellant Mansoor Ali Babar, Umer Hayat alias Doctor, Syed Asif Ali, Muhammad Fazil, Muhammad Gulzar, Khawaja Saleemuddin alias Captan Salim (in Criminal Appeal No.200 of 1995), Muhammad Ahmed (in Criminal Appeal No.204 of 1995), Muhammad Ahmed, Muhammad Gulzar alias Prof. Hayat Pasha (in Criminal Appeal No.207 of 1995), Mansoor Ali Babar, Umer Hayat alias Doctor, Syed Asif Ali, Muhammad Fazil, Muhammad Gulzar, Khawaja Saleemuddin alias Captan Salim (in Criminal Appeal No.201 of 1995), Muhammad Ahmed (in Criminal Appeal No.203 of 1995), Muhammad Gulzar alias Prof. Hayat Pasha, Muhammad Ahmed (in Criminal Appeal No.206 of 1995), Asif Gulshanwala, Fahimul Haque (in Criminal Appeal No.61 of 1996) Mansoor Ali Babar, Umer Hayat alias Doctor, Muhammad Fazil, Saghir Ahmed Sheikh, Hafiz Ahmed Bax, Khawaja Saleemuddin alias Captan Salim, Ahmed Zahoor (in Criminal Appeal No.202 of 1995) Karimullah Sharif (in Criminal Appeal No.208 of 1995) and Fahimul Haque (in Criminal Appeal No.62 of 1996) respectively, as common questions of facts and law are involved in all of them.

2. The facts leading to the filing of Criminal Appeals Nos.200, 204 and 207 of 1995 are that the appellants were involved in Crime No.I 11 of 1995, lodged under sections 396, 307, 302, 109 and 34, P.P.C. at Police p- Station Ferozabad, Karachi. The allegations against them as per case of prosecution are that on 25-2-1995 at about 7-15 a.m., 3 unknown culprits, one armed with Klashnikov and 2 with pistols made to stand the persons, namely, Maulana Ayub Sabri, Muhammad Bashir, Hameed Bhojani Farhat Abbas, Rajab, Rajab Ali, Sher Muhammad, Haji Ghulam Muhammad, Anwar Abbas, Hassan, Zameer Hussain Shah, Munir Hussain, Safdar

Hussain, Syed Ali Bilgrami and Qari Muhammad Hussain and Imran with their faces towards wall of Imam Bargah Mehfil-e-Murtaza and fired in discriminately upon them, resulting in 14 persons excluding Qari Muhammad Hussain and Imran expired at the spot, whereas Qari Muhammad Hussain and Imran sustained fire-arm injuries. Subsequently, Qari Muhammad Hussain reported the matter to police and lodged the above case. The appellants were arrested in this case and on completion of investigation were sent up to face trial before the Special Court (S.T.A.), Karachi, wherein appellants Asif Gulshanwala and Fahimul Haque were shown absconders. After completing all the codal formalities, proceedings under sections 87 and 88, Cr.P.C. were initiated against the absconding accused. The charge was framed against the appellants, to which they pleaded not guilty and claimed trial.

3. At the trial prosecution examined P.W.I Dhani Bux Balouch, F.C.M., P.W.2 Dr. S. Farhat 'Abbas, who conducted post-mortem of deceased Muhammad Ayub Sabri, P.W.3 Dr. Jai Ram Das, who performed autopsy on the dead body of Muhammad Hali and Haji Ghulam Muhammad, P.W.4 S.I.P. S.A. Majeed Abbas at Police Station Ferozabad, who gave account of investigation conducted by him, P.W.5 S.I.P. Muhammad Afzal of C.I.A., who arrested appellant Muhammad Amjad, P.W.6-Abdul Karim Sehwan, F.C.M., who held identification test of the properties and recorded confession of the appellants, P.W.7 Shahid Sheikh, Medical Officer, who conducted post-mortem of deceased Anwar Abbas, Munir Hussain, Hameed Bhojani, Muhammad Bashir, Bilgrami and Rajdb, P.W.10 Mashir Altaf Bhojani, who identified Timex watch of his brother deceased Hameed Bhojani, P.W.11 Mashir Haider Ali, who identified watch and 'Tasbeeh' (Rosary) of his deceased brother Bashir, P.W.12 S.I.P. Sajjad Haitfer of C.I.A.; who partly investigated the case, P.W.13 Mashir Zameer Hussain who identified watch of his deceased brother Munir Hussain, P.W.14 Shabir i Rahim, Mashir of Vardat and identification of wrist watch of deceased Farhat, P.W.15 Ali Noor Ali Noor, father-in-law of deceased Ayub Sabri who identified ring containing K Feroza1 (jadestone) of his son-in-law, P.W.16 Abdul Rasheed, Mashir of arrest and recovery of weapons, P.W.17 Syed Maqbool Hussain Mashir of recovery of

Timex watch from appellant Adil, P.W.18 A.S.-I.

Muhammad Arif Hussain, Mashir of recovery of pistol from appellants Fazil. and Gulzar, P.W.19 Muhammad Ali Rind, Investigating Officer, P.W.20 Anwar Zaib, Investigating Officer, who produce Ballistic Expert Report, P.W.21 Muhammad Hussain, first informant and eye-witness, P.W.22 S.-I. Shakir Ali, process server and P. W.23 Dr. Fazal Rahim of Agha Khan Hospital, who examined injured and thereafter, the prosecution closed its side.

* 4. Appellants in. their respective statements under section 342, Cr.P.C. denied the case of prosecution and claimed to be innocent. Appellant Mansoor Ali Babar claimed ' that he was General Secretary of Sipah-e-Sahabah and has been involved due to political affiliation with the party in this case, According to him he was arrested by police on 30-3-1995 from his house at 2-30 a.m. and such telegram was sent to concerned authorities. He had also filed Constitutional Petition Nq.D-712 of 1995 before this Court. From 22-2-1995 to 25-2-1995 he was residing in Shan Hotel, Lahore and * had produced such certificate. On 25-4-1995 his mother moved an application before the Deputy Commissioner, Karachi-Central and he produced a copy of the application with the remarks of Deputy Commissioner in Case No. 124 of 1995. He did not examine himself on oath, but examined Mst. Rehana Begum, his mother, in defence. She deposed in her statement that her son appellant Mansoor Ali Babar was arrested on 30-3-1995 in between night of Wednesday and Thursday from house by some police Constables wearing civil dresses. She saw so many police constables in uniform outside the house. On 2-4-1995 she sent telegram to President of Pakistan and also filed Constitution Petition before this Court and made application to Deputy Commissioner, Karachi-Central.

5. Appellant Umer Hayat in his statement specifically denied the allegations and further claimed that he was prey of political victimization as he was member of an organization. From 22-2-1995 to 25-2-1995 he was in ' Shan Hotel, Lahore and has produced certificate in Case No. 124 of 1995. He was arrested on 30-3-1995 from a flat. He had sent telegrams to 10 and Commissioner and Constitutional Petition No.D-712 of 1995 was filed by mother of appellant Mansoor Ali Babar. He did not examine himself on oath but examined Muhammad Gulshan and Muhammad Zafar, staff reporters of daily Dawn and Jang, in his defence. P.W. Muhammad Gulshan stated that he was student of third. LL.B. and knew appellant Umer Hayat as his neighbourer. He was arrested on 30-3-1995 during the night hours. He saw so many police mobiles at the gate of his house.

P.W. Muhammad Zafar claimed to be student of B.Com. and neighbourer of appellant, stated that the appellant was arrested on 30-3-1995 from his flat.

* 6. Appellant Khawaja Saleemuddin denied the case of prosecution and claimed that he was involved in the case by police due to political victimization. He was arrested on 13-5-1995 from cafe Zubaidia, Situated at Buffer Zone and car No.AB-0292, belonging to Messrs Soneri Bank Ltd., snatched'on 26-4-1996 from Nazimabad was falsely foisted upon him. He did not examine himself on oath but examined one Qamar Wahab in his defence. The said D.W. is a Senior Executive Vice-President of Soneri Bank Ltd., stated that his car was stolen on 26-4-1995, about which he. informed the Crime Monitoring Cell. He produced copy of the F.I.R. The said car was returned to him by C.I.A. Police, Garden on 24-5-1995 through Court.

* 7. Appellant Muhammad Fazil in his statement pleaded that he was involved due to political victimization. On 2-3-1995 he was admitted in R.H.C. Hospital, Mustafabad, District Kasur, where he was on bed up to 15-3-1995. He produced out door patient ticket in Case No. 124 of 1995. He was arrested by police on 30-3-1995. He did not examine himself on oath but examined Azhar Hussain and Muhammad Amiruddin in defence. Both of them stated that appellant Fazil was arrested on 30-3-1995 at 2-30 a.m. by the police. .

8. Appellant Muhammad Gulzar stated that he did not confess the guilt, but his signatures and LTI were obtained by police. The witnesses had deposed against him at the instance of police. He was arrested from Bazar of Faisalabad on 30-4-1995; He examined himself on oath and also examined D.Ws. Hakeem Zulfiqar Ali, Fazeelat Noreen, his wife and Nazeer Ahmed.

On oath he had stated that he was arrested on 30-4-1995 from Bazar at i Faisalabad by Inspector Anwar Zaib. His eyes were folded and he was maltreated. He was never produced before any Magistrate for confessional statement and that he was victim of political enmity.

* 9. Appellant Muhammad Ahmed claimed that he has been falsely implicated by the police. He neither examined himself on oath nor led any evidence in defence. .

* t 10. Appellant Syed Asif Ali claimed that he was arrested on 30-3-1995, such telegram and letters were sent to the concerned authorities and that he was involved due to political victimization. He neither examined himself on oath nor led any evidence in defence.

11. The trial Court framed the following points for determination:— * p , * (1) Whether the deceased died homicidal death and P.W. Muhammad

Hussain sustained fire-arm injuries? £

* „ (2) Whether the accused except Muhammad Ahmed in furtherance of . their common intention intentionally committed murders of deceased . persons? ‘ (3) Whether present accused except Muhammad Ahmed in furtherance _p of their common intention attempted over the life of Muhammad Hussain and caused him injuries by means of fire-arm weapons? (4) Whether the present accused except Muhammad Ahmed in , - furtherance of their common intention committed dacoity of valuables of deceased persons and injured Muhammaid Hussain?

r (5) Whether accused Muhammad Ahmed abetted in commission of the murder of deceased, attempt over life of Muhammad Hussain and commission of dacoity by instigating the co-accused? ri

12. On assessment of evidence the appellants were found guilty and were convicted and sentenced as under:— Appellants Mansoor Ali Babar, Umer Hayat, Syed Asif Ali, Muhammad Gulzar, Khawaja Saleemuddin, Muhammad Fazil, Fahimul Haq and Asif Gulshanwala were convicted under section 302 read with section 34, P.P.C. to death and fine. They were also convicted under section 304/34, P.P.C. with 10 years R.I and fine ' separately. They were also convicted under section 396/34, P.P.C.

and sentenced to 5 years R.I. and fine separately. Appellant Muhammad Ahmed was convicted under section 109, P.P.C. and

sentenced to death with fine separately.

13. The facts leading to the Filing of Criminal Appeals Nos.201, 203, 206 of 1995 and 61 of 1996 are that appellants Mansoor Ali Babar, Umer Hayat alias Doctor, Syed Asif Ali, Muhammad Fazil, Muhammad Gulzar alias Prof. Hayat Pasha, Khawaja Saleemuddin alias Captan Salim, Muhammad Ahmed, Asif Gulshanwala and Faheemul-Haque were involved in F.I.R. No.85 of 1995 of Police Station New Town, Karachi registered under section 302 of Qisas and Diyat Ordinance. On 25-2-1995, S.H.O. Ghulam Farred of Police Station, New Town was in his house, whereas S.I.P. Rana Ashraf was on duty when at about 9-20 a.m. they received wireless

message that firing had taken place in Imam Bargah Abul- Fazl, P.I.B. Colony, Karachi. They alongwith their subordinate staff arrived at the place of vardat and found 6 dead bodies which were identified by Syed Ghulam Abbas and Syed Moosa Abidi to be of Hiader Ali, Mujeedul Hassan, Muhammad Hussain, Baqar Ali, Kamil Ali and Sarfraz. S.I.P. Rana Ashraf sent his statement to Police Station for incorporation in 154, Cr.P.C. Book and removed the dead bodies to Civil Hospital, whereas S.H.O. Ghulam Fareed inspected scene of offence, collected blood from vardat and secured 35 empties of klashnikov, 13 empties of .30 bore pistol, 4 empties of ' .9 mm pistol and 20 leads of bullets and sealed them at the spot after preparing such Mashimama. Ghulam Akbar, S.-I.

Criminalistic Cell prepared the moulds of tyres of vehicles. The facts further reveal that Muhammad Ashraf, Mutawalli Imam Bargah disclosed that on the day of incident at about 6-05 a.m. 2/3 young unknown terrorists, thin and thick of fair completion, armed with Klashnikovs came in an unnumbered car. They entered inside Imam Bargah Abul Fazal and fired at the persons performing prayer, resulting in death of above named six persons and thereafter they ran away from the spot. Police started investigation and arrested appellants Mansoor Ali Babar, Umer Hayat alias Doctor, Syed Asif Ali, Muhammad Fazil, Muhammad Gulzar, Khawaja Saleemuddin alias Captan Salim and Muhammad Ahmed. On completion of investigation they were sent up to face trial alongwith appellant Asif Gulshanwala and Faheemul Haque, the absconders.

14. The appellants did not plead guilty to the charge and claimed trial.

15. Prosecution examined P.W.I Dhani Bux Balouch, Magistrate, who recorded the confession of appellant Saleemuddin, P.W.2 S.I.P. Allah Bux, * who incorporated statement of S.I.P. Muhammad Ashraf in 154, Cr.P.C. Book, P.W.3, S.H.O. Ghulam Farid, P.W.4 A.S.-I. Ejaz Ahmed, Mashir of vardat, P.W.5 Ghulam Abbas, Mashir of inspection of the dead bodies and inquest reports, P.W.6 Dr. Asif Ali, who conducted post-mortem examination of dead bodies of Mirza Sarfraz Ali, Mirza Kamil and Mirza Bakir Ali, P.W.7 S.-I.

Muhammad Afzal of C.I.A. Mashir of arrest of appellant Muhammad Ahmed, P.W.8 Mr. Abdul Karim Sehwan, Magistrate P.W.9 S.I.P. Rana Muhammad Ashraf, P.W.10 Dr. Aftab Ahmed, who conducted the post-mortem examination of Muhammad Hussain, Mirza Haider Ali and Mujeedul Hassan, P.W.11, S.I.P. Sajjad Haider of C.I.A., P.W.12 Syed Mozammil Jafri, P.W.13 Abdul Rasheed Mashir, P.W.14 Maqbool Hussain Mashir, P.W.15 Mali M. Arif Hussain Mashir, P.W.16 Shakir Hussain, process server, according to whom Muhammad Ashraf is not traceable, P.W.17 Inspector * Muhammad Ali Rind and P.W.18 Zaib Inspector, both Investigating Officers, who have given the account of their investigation and furthermore, Inspector Anwar Zaib has produced sealed envelopes received from Ballistic Expert, whose reports were brought on record and then the prosecution closed its side.

16. The appellants in their respective statements under section 342, Cr.P.C. denied the allegations of prosecution and pleaded innocent. They claimed that they were implicated in the case due to religious rivalry. The appellants, excepting Gulzar Ahmed, examined themselves on oath and examined witnesses in defence, except Appellant Muhammad Ahmed also did not lead any defence. .

i * 17. The trial Court framed the following points for determination:- (1) Whether deceased died Homicidal death? * * * (2) Whether robbery of valuables from the persons of deceased were committed? (3) Whether the accused except Muhanunad Ahmed in furtherance of their common intention of all committed the murder of deceased 1 to 6? (4) Whether the accused persons except Muhammad Ahmed in furtherance of their common intention committed the dacoity of

valuables from the possession of the deceased named above? A (5) Whether accused Muhammad Ahmed abetted in Commission of offence, murders of deceased persons named above and commission of dacoity of their valueables by instigating all the accused? (6) What offence if any has been committed by the accused persons? 18. On the assessment of evidence the appellants were found guilty and were convicted and sentenced as follows Appellants Mansoor Ali Babar, Umer Hayat, Syed Asif Ali, Muhammad Gulzar, Khawaja Saleemuddin, Muhammad Fazil Fahimal Haq and Asif Gulshanwala were convicted under section 302/34, P.P.C. to death and fine. Appellant Muhammad p Ahmed was convicted under section 109, P.P.C. and sentenced to death with fine separately. Applicants Mansoor Ali Babar, Umer Hayat, Syed Asif Ali Muhammad Gulzar, Khawaja Saleemuddin, Muhammad Fazil, Fahimul Haq and Asif Gulshanwala were convicted under section 396/34, P.P.C. with 5 years' R.I. and fine separately.

19. The facts leading to the filing of Criminal Appeals Nos.202, 208 of 1995 and Criminal Appeal No.62 of 1996 are that appellants Mansoor Ali Babar, Umer Hayat alias Doctor, Muhammad Fazil, Saghir Ahmed Sheikh Khawaja Saleemuddin alias Captan Salim, Ahmed Zahoor, Karimullah Sharif and Fahimul Haq were involved in F.I.R. No. 122 of 1995 of Police Station Ferozabad Karachi, registered under sections 396, 302, 307, 460, 109 and 34, P.P.C. The facts in brief of the prosecution case are that in the night between 1st and 2nd March, 1995. S.H.O. of Police Station Ferorzabad, received a message at Tariq Road, 'Eid Shopping Centre that firing had taken place in bungalow No.J-110, Block 2, P.E.C.H. Society, Karachi. He alongwith with his subordinates proceeded there where P.W. Furqan met him, who was bleeding from head and disclosed that at about 12-00 hours in the night 3 unknown accused persons, aged about 22 to 30, one wearing pilot like uniform containing golden colour buttons, tall, mustaches of medium size and hairs, parting toward backside, carrying mobile phone, seeond wearing Shalwar Kamiz and jacket of jeans, having small beard, short height, whitish completion, medium black hair and third of black complexion, wearing Shalwar Kamiz, Khashkhashi (small) beard, tall and medium black hairs, armed with pistols, speaking Saraiki, Punjabi and Urdu languages, entered in the house at first floor. They collected the male members.

namely, Kamran, Muhammad Ayub, Maqsood Shah, Ejaz Hassan, Hassan Ali, Fayyaz Hussain-, Imran Ayub and Furqan Ayub at second floor of the house, whereas women at the first floor. Thereafter, they robbed jewellery, cash amount, clothes and placed the same in Suzuki Alto car parked below. Thereafter, they tied the hands from back side of the above 8 persons and pushed them in bed room, whereas they pushed the ladies into drawing room and closed the door and fired from their respective pistols on them, as a result whereof all of them, excepting Furqan, died considering Furqan dead . all the 3 accused ran away with robbed articles. The S.H.O. shifted the dead " h bodies to Jinnah Post-Graduate Medical Centre for medical examination. The S.H.O. recorded the statement of P.W. Furqan Ayub, Mumtaz, Shazia Ayub, Nazia Ayub, Shama Noreen, Afshan Ayub, Faiz Batool and Sufia Hassan. The robbed car was recovered by Frere Police. The police arrested appellants Mansoor Ali Babar with klashnikov loaded with 21 live cartridges, Umer Hayat with Klashnikov loaded with 15 live bullets, Muhammad Fazil with klashnikov loaded with 17 bullets, Karimullah Sharif with sten gun loaded with 10 bullets and one Asif Ali with pistol and 5 bullets. The rest of the appellants were also arrested, and on completion of investigation they were sent up for trial before the abovementioned Court on b 28-5-1995, showing Fahimul Haq as absconder. * 20. The prosecution examined P.W. A.S.-I. Sarfraz, Mashir of Vardat, P.W. Dr. Nawaz Ali, who conducted post-mortem examination of dead body of Ejaz Hassan, Hassan Ali, Fayyaz Hassan and Imran Ayub, P.W./Mashir, k Ahmed Ali, who produced the memo, of inspection of dead bodies and inquest reports of the deceased Kamran, Muhammad Ayub, Masood Shah, Ejaz Hassan, Hassan Ali, Fayyaz Hassan and Imran Ayub, P.W. Dhani Bux Baluch, Magistrate, who recorded the confession of appellant Salimuddin, P.W. Dr. Ayaz Ali, who examined injured Furqan Ayub and conducted post-mortem examination of deceased Kamran, Muhammad Ayub, Masood Shah, P.W. Majeed Abbas S.I.P., who had

prepared the mashimama of vardat and sketch; P.W. S.I.P. Muhammad Ashraf of Police. Station Frere Hall, who secured the car of deceased Hassan Ali and handed over to Anwar Zaib, P.W. Mansoor Hussain, S.I.P. of Ferozabad, who prepared the inspection of dead bodies and inquest reports, P.W. Abdul Karim Sehwan, Magistrate, who held the identification of appellants and property and recorded the confession of appellant, P.W. Mst. Mumtaz Ayub, P.W. Furqan Ayub, P.W. Nazia Ayub, P.W. Fiaz-Batool, P.W. Sufia Hassan (All eye-witnesses), P.W. Maqbool Hussain Shah Mashir of recovery, P.W. Abdul Rasheed Mashir of arrest of appellant, etc. P.W.

Tauqeer-ur-Rehman, Mashir of recovery of property and arrest of appellant, P.W. S.I.P. Sajjad Haider of C.I.A., P.W./Mashir Malik Arif Usman, P.W. Shakir Ali, process-server, P.W. Muhammad Ali Rind, Investigating Officer, P.W.

Anwar Zaib, Investigating Officer, who has given the account of his investigation as stated above and produced sealed envelopes received from Ballistic Expert containing his opinion regarding the arms and finger prints, etc. and acknowledged to have received sealed parcel of bullets sent to him by Anwar Zaib through letter, dated 6-3-1995 and P.W. Shariq Hussain, Credit Executive (Instaphone) and then the prosecution closed its side.

21. The appellants in their statements under section 342, Cr.P.C. denied the case of prosecution and claimed innocence and pleaded false implication by police. They did not examine themselves on oath, but examined witnesses in defence as under:-- (1) Appellant Mansoor Ali Babar examined his mother D.W. Rehana Begum.

* (2) Appellant Umer Hayat examined D.W. Gulshan and D.W. Muhammad Zafar.

(3) Appellant Muhammad Fazil examined D.W. Muhammad Ameer and D.W. Azhar.

All these witnesses stated that appellants were arrested in the night of 3-3-1995 from their houses.

(4) Appellant KarimulJiti Sharif examined D.W. Haji Kifayatullah Sharif, his father, who deposed that his son was missing from 27-3-1995 and on 3-4-1995 he came to know about arrest of his son through paper. Ataullah Khan, who deposed that the appellant was taken away by some persons on gun point from garage on 27-3-1995.

(5) Appellant Ahmed Bux examined D.W. Qari Shamsul Haq and Maulana Abdul Ghafoor, who deposed that appellant arrested on 10-3-1995 from Masjid after Jumma prayer. Abdul Ghafoor further added that Muhammad Ali Rind had taken NIC of appellant from him.

(6) Appellant Saghir Ahmed Sheikh had examined D.W. Abdul Matin, who deposed that appellant was on duty at godown on 1-3-1995 from 9-00 a.m. to 11-00 p.m. and D.W. Shamsuddin deposed that the appellant was arrested from Masjid after Jumma prayer and this witness further added that appellant Salimuddin was arrested on 13-5-1995 from Buffer Zone. (7) Appellant Salimuddin also examined D.W. Qamar Wahab, who deposed that stolen Car No.0232 Suzuki of bank was recovered by police and he had seen it at C.I.A. Garden on 3-5-1995.

(8) Appellant Ahmed Zahoor had examined his mother in defence, who * deposed that Ahmed Zahoor was produced at Police Station C.I.A. Garden.

22. The learned trial Court framed the following points for determination:— * i * (1) Whether Muhammad Ayub, Hassan Ali, Fayyaz Hassan, Imran * Ayub, Kamran, Ejaz Hassan and Syed Masood Shah died haemocidal death by means of fire-arm injuries? t * * (2) Whether there was

attempt over the life of Furqan by causing firearm injury? , m (3) Whether the robbery duly armed with deadly weapons was committed from the houses of deceased Ayub and Hassan Ali including his car standing outside? (4) Whether accused Fazil, Salim, Ahmed Zahoor and absconding accused Fahim in furtherance of their common intention committed . * the murders of the above named deceased? (5) Whether accused Fazil, Salim, Ahmed Zahoor and absconding.

accused in furtherance of their common intention attempted over the _ life of Furqan by means of fire-arms injury? m * m (6) Whether accused. Fazil, Salim, Ahmed Zahoor, absconding accused committed the robbery of valuables from the houses of Muhammad Ayub and Hassan Ali and also took away car of Hassan Air in furtherance of their common intention? * , (7) Whether accused Mansoor Ali Babar, Umer Hayat, Karimullah Sharif, Hafiz Ahmed Bux, Saghir and Ishtiaq abetted in commission i of the murders of the above named deceased, attempt over life of Furqan and' commissions of robbery duly armed with deadly weapons by co-accused Fazil, Salim Zahoor and absconding accused Fahim? , N (8) What offences have been committed by the accused, if any? I m 23. On assessment of evidence as well as after hearing the learned counsel for the parties, the appellants were found guilty and were convicted and sentenced as under. ' h Appellants Muhammad Fazil, Khawaja Saleemuddin, Ahmed Zahoor and Fahimul Haq were convicted under section 302/34, P.P.C. and sentenced to death. They were also convicted under section 307/34, P.P.C. with 10 years R.I. and fine separately. They were also convicted under section 394/36, P.P.C. with 5 years' R.I. and fine separately. Appellants Mansoor. Ali Babar, Karimullah Sharif, Umer Hayat, Saghir Ahmed Sheikh and Hafiz Ahmed Bux were convicted under section 109, read with section 34, P.P.C.

and sentenced to death and fine separately.

24. We have heard Messrs Muhammad Ashraf Kazi and Azizullah K. Shaikh, the learned counsel for the appellants, Mr. K.M.

Nadeem the learned counsel appearing on behalf of P.W. Altaf Bhojani and Mr. Muhammad Iqbal Raad, the learned Advocate- General, Sindh, on behalf of the State at length and have perused the record and proceedings of the case minutely.

25. At the very outset the learned counsel for the appellants contended that trial in all these cases has not proceeded in accordance with newly amended provisions of Pakistan Penal Code, but the entire trial has been conducted under the old provisions of P.P.C., which vitiates the entire trial.

They next argued that the case was not only registered under section 307, P.P.C., but the entire trial was conducted under the repealed provisions of law, so also the conviction was awarded to all the appellants in the abovereferred cases. Admittedly after amendment introduced in P.P.C. by Criminal Law (Second Amendment) Ordinance, 1990, the provisions of section 307, P.P.C. were deleted and are not available on the statute. By the above Ordinance provisions relating to Qisas and Diyat were introduced and in the chapter relating o offences against human body sections 299 to 338 were submitted in P.P.C. According to them the charge was framed in all the cases irrespective of other sections under sections 307 and 109, P.P.C., which admittedly are not available in the statute. So far trial under section 302, P.P.C. against the appellants is concerned, the same, too, proceeded ignoring the provisions of sections 300 and 302, P.P.C. by neither framing the charge of Qatl-i-Amd nor convicting any of the appellants under any of the 3 subsections of section 302, P.P.C. So much so the procedure of conducting trail under section 304, P.P.C. has not at all been complied with by the trial Court while examining the prosecution witnesses and awarding conviction to the appellants. They lastly contended that when the trial has not proceeded in accordance with law the conviction and sentence is liable to be set aside

and it is a fit case for remand for fresh trial, to be conducted in Accordance with law in force.

f 26. On the other side, learned Advocate-General, Sindh has ' controverted the contentions of the learned counsel for the appellant and contended that they have pointed out mere technical defects in the case and it would not be appropriate to remand the cases on such technicalities. He, however, could not satisfy on the above legal objections and also did not produce any case law in support of his arguments.

' y 27. Mr. K.M. Nadeem, the lfeamed counsel appearing on behalf of P.W. 10 Altaf Bhojani in Criminal Appeal-No.200 of 1995, mainly contended that the provisions of amended, P.P.C. relating to Qisas and Diyat laws introduced by Criminal Law (Second Amendment) (Ordinance No.VII) of 1990 have not been specifically made applicable in the cases triable under Suppression for Terrorist Activities Act, 1975, as such the contentions of the appellants1 counsel have no force. He next contended that the competency of witnesses has neither been challenged before the trial Court nor they were cross-examined with regard to their testimony or previous character and nonobservance of procedure for conducting the test of Tazak-ul-Shuhood. Thus, - their evidence cannot be discarded. He placed reliance on the case of Noorul Islam v. The State, reported in 1986 PCr.U 1818 and also on the case Noorul Islam v. The State, reported in 1986 SCMR 1836. , t 28. The incident in these cases had taken piace on 25-2-1995 in the night in between 1st and 2nd March, 1995, whereas the Criminal Law (Second Amendment) (Ordinance No. VII) of 1990 was promulgated on 5-9-1990 and was enforced from 12th Rabi-ul Awwal, 1411 A.fL, which fell on 2-10-1990. whereby the provisions relating to Qisas and Diyat were introduced and in chapter relating to offences against human body sections 299 to 338 were substituted in Pakistan Penal Code. By the said amendment, an amendment was brought in section 53, P.P.C. and the punishment provided by the Shariah, as stated above, was introduced, which 'reads as under:- Firstly, Qisas; .

Secondly, Diyat; * Thirdly, Arsh; * Fourthly, Daman; Fifthly, Ta'zir; 1 " Sixthly, Death; .

% Seventhly, Imprisonment for life; Eighthly, Imprisonment which is of two descriptions, namely; (i) Rigorous, i.e. with the hard law J- (ii) Simple Ninthly, Forfeiture of property; Tenthly, Fine.

29. An amendment was also brought in sections 337 and 338 of Cr.P.C. relating to tender of pardon. An amendment was also brought in section 381, relating to execution of sentences provided in Chapter XXVIII of Cr.P.C. At the same time Schedule II of Cr.P.C: was also amended and the figures "302 to 338" occuring in column I and the entries relating threreto in columns 2 to 8 were substituted. A further amendment was brought in P.P.C. and Cr.P.C.

* by Criminal Law (Third Amendment) 1990 as Ordinance No.VIII of 1990 on 2nd October, 1990 to bring certain provisions thereof in conformity with Injunctions of Islam as laid down in Holy Qur'an and Sunnah. By this amendment sections 54, 55 and 338-E of P.P.C. were amended. Correspondingly an amendment was brought in section 345, Cr.P.C. and in the table in the second column, for the figures "302, 303, 304-A, 305, 306, 307, 308, 324,325, 326, 327, 328, 329, 330, 331, 332, 333, 335, 337, 338 and 308 relating to in the first and third columns were substituted and above offences were made compoundable. An amendment was also brought in section 32 and section 402-C, Cr.P.C. Similarly Ordinances were being repeated onwards on the expiry of its period with certain amendments till 11-4-1997, when an Act of 1997 called as Criminal Law (Amendment) Act, 1997, No.II. It was passed by the Parliament (Ordinance No.CVIII of 1996).

* 30. It would be pertinent to refer here in brief the background of enforcement of above referred Criminal Law (Second Amendment) (Ordinance No.VII) of 1990.

i 31. The Hon'ble Federal Shariat Court in several Shariat Petitions vide * judgment, dated 5-10-1986 declared the provisions of sections 299 to 338, P.P.C. repugnant to Injunctions of Islam. The provisions of section 109, P.P.C. which make an abettor in case of murder and other offences against * human body liable to the same punishment as prescribed for such offence was also declared to be repugnant to the Injunctions of Islam. An appeal was filed before the Honourable Supreme Court whereby the decision of the Honourable Federal Shariat Court was challenged. The Sharait Appellate% Bench of the Honourable Supreme Court in the case of Federal Shariat Court of Pakistan through Secretary, Ministry of Law and another v. Gul Hassan Khan and others, reported in PLD 1989 SC 633, declared the above referred provisions of P.P.C. repugnant to the injunctions of Islam as enshrined in Holy Qur'an and Sunnah and fixed 23rd March, 1990 to be the date from which the same were made applicable. Thereafter, a review petition was filed before the Honourable Supreme Court and in the matter of Federation of Pakistan v. N.-W.F.P. Government and another reported in PLD 1990 SC - 1172, it was undertaken by the Government that Ordinance with regard to enforcement of Qisas and Diyat laws would be promulgated by 5th September, 1990 and. be made effective from 12th Rabiul-Awwal, 1411 A.H. ' v 32. Admittedly, trial in the cases in hand was conducted under the old/repealed provisions of sections 302, 307 and 109, P.P.C.

though F.I.R. No.85 of 1995 of Police Station New Town, Karachi in Criminal Appeals Nos. 201, 203 and 206 of 1995 was registered under section 302 of .Qisas and Diyat Ordinance. The above fact, on the face of it, is apparent that neither charges of Qatil-i-Amd liable to Qisas, as envisaged under sections 300 and 302, P.P.C. have been framed nor the trials were conducted M in accordance with section 304, P.P.C. The conviction under sections 307 and 109, P.P.C. further reveals that the learned Judge while convicting the appellants was appeared to be totally ignorant of law. Section 307-, P.P.C.

not being its existence on the statute at the relevant time and .section 109, i P.P.C. having already been declared to be against Injunctions of Islam, as envisaged in Holy Qur'an and Sunnah by the Honourable Supreme Court, vitiates the entire proceedings and such illegality is not curable under section 537, Cr.P.C.

* *

33. In the first set of appeals, viz., Criminal Appeals Nos.200, 204 and 207 of 1995, appellants Mansoor Ali Babar, Umer Hayat, Syed Asif Ali Muhammad Gulzar, Khawaja Saleemuddin, Muhamamd Fazil, Fahimul Haq and Asif Gulshanwala were convicted under section 302 read with section 34, P.P.C. to death and fine. They were also convicted under section 304/34, P.P.C. with 10 years R.I. and fine separately. They were also convicted under section 396/34, P.P.C. and sentenced to 5 years R.I. and fine separately. Appellant Muhammad Ahmed was convicted under section 109, P.P.C. and sentenced to death with fine separately. , 34. In the second set of appeals, viz. Criminal Appeals Nos.210, 203, 206 of 1995 and 61 of 1996, appellants Mansoor Ali Babar, Umer Hayat, Syed Asif Ali, Muhammad Gulzar, Khawaja Saleemuddin, Muhammad Fazil Fahimul Haq and Asif Gulshanwala were convicted under section 302/34, P.P.C. to death and fine. Appellant Muhammad Ahmed was convicted under section 109, P.P.C.

and sentenced to death with fine separately. Appellants Mansoor Ali Babar, Umer Hayat, Syed Asif Ali, Muhammad Gulzar Khawaja Saleemuddin, Muhammad Fazil, Fahimul Haq and Asif

Gulshanwala were convicted under section 396/34, P.P.C. with 5 years R.I. and fine separately.

35. In the third set of appeals, viz Criminal Appeals Nos.202, 208 of 1995 and 62 of 1996

appellants Mufiammad Fazil, Khawaja Saleemuddin, Ahmed Zahoor and Fahimul Haq were convicted under section 302/34, P.P.C. with 10 years' R.I. and fine separately. They were also convicted under section 394/34, P.P.C. and sentenced to death. They were also convicted under section 307/34, P.P.C. with 5 years' R.I. and fine separately. Appellants Mansoor Ali babar, Karimullah Sharif, Umer Hayat, Saghir Ahmed Sheikh and. Hafiz Ahmed Bux were convicted under section 109 read with .section 34, P.P.C. and sentenced to death and fine # separately. „ ' t 36. From what has been discussed above, we are of the considered view % that the convictions under sections 307/34., P.P.C. and 109, P.P.C. are not i warranted by the law. In the instant case even no reference is made in the judgment to any of the 3 subsections of section 302, P.P.C. In the case of Muddasir alias Jimmy v. The State, reported in 1996 SCMR 3, the Honourable Supreme Court has laid down guidelines with regard to trial as well as the convictions to be awarded in the cases registered under amended section 302, P.P.C. It would be appropriated to reproduce hereunder the relevant placitums for ready reference:- M(a) Penal Code (XLV of 1860)

S. 302—Courts have bounden duty to specify relevant subsection of S.302 whereunder they have convicted/sentenced accused-Mention of subsection of S.302 under which accused is convicted/sentenced would be in accordance with requirement of S.367, Cr.P.C.

(b) Ibid— S. 304. Trial Courts alarmingly ignore S.304 and Art. 17, Qanun-e-Shahadat (1984), while recording evidence of witnesses—It not only results in miscarriage of justice but also deters superior Courts in rectifying errors or passing appropriate orders. S.304 plays pivotal role in determining fate of persons found guilty for Qatl-i-Amd under S. 302." a 37. Thus, from the placitums, referred hereinabove, it is crystal clear that it is mandatory for the trial Court to specify relevant subsections of section 302, P.P.C., whereunder the convictions have been awarded with detailed reasons. By not doing so the very purpose of the above Islamic provisions of laws becomes frustrated. The law referred by Mr. K.M.1 Nadeem has no relevance with the present case as it relates to the year 1986, whereas the above Criminal Law (Second Amendment) (Ordinance No.VII) of 1990 came into force; in 1990.

38. We are also fortified by unreported decision in Criminal Appeals Nos. 126 and 135 of 1995 and Criminal Jail Appal Nos.26 and 69 of 1995 of this Court wherein reasons were given in detail and under the similar circumstances convictions and sentences were set aside and the cases were remanded for re-trial.

39. From the above discussion we are of the considered view that the trials in the above-referred cases have not been conducted in accordance with law in force, as such the convictions and sentences are set aside and the cases are remanded to the trial Court for re-trial in accordance with law. The trial Court would commence with the trial immediately and conclude the same as early as possible. ' Cases remanded

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